

An Act

ENROLLED SENATE
BILL NO. 137

By: Hamilton of the Senate

and

Wilk and Turner of the
House

An Act relating to the Department of Corrections;
amending 57 O.S. 2021, Section 510.9, which relates
to the Electronic Monitoring Program; modifying
elements of program eligibility; updating statutory
language; updating statutory reference; and providing
an effective date.

SUBJECT: Department of Corrections

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 510.9, is
amended to read as follows:

Section 510.9. A. There is hereby created the Electronic
Monitoring Program for inmates in the custody of the Department of
Corrections who are sentenced for a nonviolent ~~offense~~ crime not
included as a violent ~~offense~~ crime defined in Section 571 of this
title. The Department is authorized to use an electronic monitoring
global positioning device to satisfy its custody duties and
responsibilities.

B. After an inmate has been processed and received through a
Department Assessment and Reception Center, has a home offer, and
has met the criteria established in subsection C of Section 521 of
this title, the Director of the Department of Corrections may assign
the inmate, if eligible, to the Electronic Monitoring Program. The

following inmates, youthful offenders, and juveniles shall not be eligible for assignment to the program:

1. Any inmate serving a sentence of more than ten (10) years who has one thousand ninety-five (1,095) days or more left on the sentence;

2. Inmates convicted of a violent offense within the previous ten (10) years or convicted of a violation enumerated in Section 13.1 of Title 21 of the Oklahoma Statutes;

3. Inmates convicted pursuant to Section 11-902 of Title 47 of the Oklahoma Statutes who are not receptive to substance abuse treatment and follow-up treatment;

4. Inmates deemed by the Department to be a security risk or threat to the public;

5. Inmates requiring educational, medical, or other services or programs not available in a community setting as determined by the Department;

6. Inmates convicted of any crime related to domestic abuse as provided for in Section 644 of Title 21 of the Oklahoma Statutes or who have an active protection order that was issued under the Protection from Domestic Abuse Act;

7. Inmates who have outstanding felony warrants or detainers from another jurisdiction;

8. Inmates convicted of a sex offense who, upon release from incarceration, would be required by law to register pursuant to the Sex ~~Offender~~ Offenders Registration Act;

9. Inmates convicted for any crime against a child or abuse pursuant to Section 843.5 of Title 21 of the Oklahoma Statutes;

10. Inmates convicted of exploitation of a vulnerable adult pursuant to Section 843.3 of Title 21 of the Oklahoma Statutes;

11. Inmates convicted of racketeering activity as defined in Section 1402 of Title 22 of the Oklahoma Statutes;

12. Inmates convicted pursuant to subsection F of Section 2-401 of Title 63 of the Oklahoma Statutes;

13. Inmates convicted pursuant to Section 650 of Title 21 of the Oklahoma Statutes;

14. Inmates convicted pursuant to subparagraph B of Section 11-904 of Title 47 of the Oklahoma Statutes;

15. Inmates who have escaped from a medium or maximum custody penal or correctional institution within the previous ten (10) years; or

~~15.~~ 16. Inmates who currently have active misconduct actions on file with the Department of Corrections.

C. Every eligible inmate assigned to the Electronic Monitoring Program shall remain in such program until one of the following conditions has been met:

1. The inmate discharges the term of the sentence;

2. The inmate is removed from the Electronic Monitoring Program for violation of any rule or condition of the program and reassigned to imprisonment in a correctional facility; or

3. The inmate is paroled by the Governor pursuant to Section 332.7 of this title.

D. After an inmate has been assigned to the Electronic Monitoring Program, denial of parole pursuant to Section 332.7 of this title, shall not be cause for removal from the program, provided the inmate has not violated the rules or conditions of the program. The inmate may remain assigned to the program, if otherwise eligible, until the completion of the sentence. Loss of eligibility for the program shall result in removal of the inmate from the program.

E. The Electronic Monitoring Program shall require active supervision of the inmate in a community setting by a correctional officer or other employee of the Department of Corrections with

monitoring by a global positioning device approved by the Department under such rules and conditions as may be established by the Department. If an inmate violates any rule or condition of the program, the Department may take necessary disciplinary action consistent with the rules established pursuant to this section including reassignment to a higher level of security or removing the inmate from the program with reassignment to imprisonment in a correctional facility. Any inmate who escapes from the Electronic Monitoring Program shall be subject to the provisions of Section 443 of Title 21 of the Oklahoma Statutes.

F. Upon an inmate assigned to the Electronic Monitoring Program becoming eligible for parole consideration, pursuant to Section 332.7 of this title, the Department of Corrections shall deliver the inmate, in person, to a correctional facility for an interview, together with any Department records necessary for the Pardon and Parole Board's investigation. Inmates assigned to the Electronic Monitoring Program shall not be allowed to waive consideration or recommendation for parole.

G. Prior to placement of any eligible inmate assigned to the Electronic Monitoring Program ~~being placed~~ in a community setting, the Department of Corrections shall deliver a written notification to the sheriff and district attorney of the county, and the chief law enforcement officer of any incorporated city or town in which the inmate is to be monitored and supervised under the program. The Department of Corrections shall provide notice of the projected date of release of an inmate to the designated Oklahoma victim notification service provider within sixty (60) days but not less than seven (7) days prior to the projected date of release of the inmate.

H. An inmate assigned to the Electronic Monitoring Program may be required to pay the Department of Corrections for all or part of any monitoring equipment or fee, substance abuse treatment program or follow-up treatment expense, supervision cost, or other costs while assigned to the program. The Department shall determine whether the inmate has the ability to pay all or part of such fee or costs.

I. The Department of Corrections shall develop policies and procedures necessary to implement the Electronic Monitoring Program

including, but not limited to, methods of monitoring and supervision, disciplinary action, reassignment to higher and lower security levels, removal from the program, and costs of monitoring and supervision to be paid by the inmate, if any.

J. An inmate assigned to the Electronic Monitoring Program shall, within thirty (30) days of being placed in a community setting, report to the court clerk and the district attorney of the county from which the judgment and sentence resulting in incarceration arose to address payment of any fines, costs, restitution, and assessments owed by the inmate, if any.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 24th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____